

of executive action of long standing usage and practice. Very rarely can they be attributed to any statutory obligations on the part of the public authorities concerned with them. It is no doubt true that the survival of the greater bulk of one entire category of public records, viz, judicial and revenue are due to be obligations imposed on them by the then supreme executive by Regulations XVIII and XXI of 1793, of "Preserving complete the records" respectively of the civil and criminal judicatures and of collectorates and other revenue authorities, and to the totality of public records in the country, and left entirely out of their scope, not only the archives of the highest tribunal in British India, but those of the supreme as well as the provincial council councils and all administrative bodies subordinate to them. More over, both the Regulations were repealed by Act XII of 1873 and since then the Indian Statute Book has practically ceased to have a law which places and obligation on any public authority in respect of its records.

Apparent exceptions are provided by several central central enactments which make it binding on certain public offices to keep and take care of documents lodged with them. But even these statutes touch only a small fraction of the mass of records categorized as public, and say next to nothing about the manner or method in which they are to be administered or disposed of the situation is kept practically unchanged by the Destruction of Records Act of 1917, which extends almost to all categories of public records. Besides empowering the High Courts and the Chief Revenue authorities in the States as well as the State Governments to dispose by destruction of any records deemed to be of ephemeral value lying in their respective possession or custody, the Act also invests the Central Government with power of disposal in respect of any records which are statutorily outside the jurisdiction of the authorities mentioned above. The statute does not affect in any way the power which, before its enactment both the Central and State Governments wielded and were exercising in respect of their own records by virtue of their executive authorities. The Act furnishes only a statutory basis of this power so far as it relates to the disposal of Central and State Government records but does not oblige the authorities concerned to discharge any functions in this respect.

So far as the public obligation in respect of public records is concerned the Indian Statute Books thus present us with a complete blank. How far the records themselves have fared in the circumstances, what lacuna exist in the prevailing arrangement in this respect and how they can be removed will be our duty to examine.

Records produced by the Government have been in the past small in number and were easily manageable, but with the increasing complexities of business handled by the Government in modern times the problem faced by the authorities concerned with them is indeed



great. The 'Record explosion' that faces us at present is not of a lesser dimension than the 'population explosion' that confronts us today. This problem, i.e. the problem of records explosion or 'bulk' is baffling the minds of Record Keepers of the country. Preservation and maintenance of record requires; money and to ensure maximum utilization of our limited resources, we have to be very selective and keep these records in a manner so as to ensure both economy and efficiency. We have to think of records right from the time we contemplate the creation of a file and plan it in such a way that they serve the purpose for which they had been created with the least possible delay. It involves planning the records creation process and systematizing the records disposition programme. The records which are produced need to be processed at a great speed. In case of conventional records, a consistent approach and effort is needed to weed out records of Ephemeral value so that records of vital importance are properly maintained and preserved for posterity.

The objective in managing public records is to make them serve the purpose for which they were originally created and to decide their proper disposition after they have served their immediate purposes unless they have enduring value other than the administrative one. This is possible if proper attention is paid to the handling of records from the time they are created till they are either destroyed or retired to an archival institution. All records have a life span which may be roughly divided into three stages. The first one is the stage of currency when the records are growing with the progress of the concerned activity or business. The second stage is that of semi-currency when they have ceased to grow after the finalization of the concerned transaction but are still used and consulted from time to time by the creating agency. The third stage is that of non-currency when they are no longer required for day-to-day reference and other administrative needs. This necessitates the proper categorization and segregation of current, semi-current and non-current records with a view to their proper disposition, as may be taken to determine the ultimate fate of the records. During these stages of life span of records the actions of the creating agency involve destruction of some records and retirement of remaining bulk to the departmental record room and ultimate centralization of some selected records in an archival institution for permanent preservation.

The problems connected with record management had been engaging the attention of the Government authorities for a long time and a major event of importance in the field of management of records was the emergence of the Indian Historical Records Commission in the year 1919.

The Commission is an advisory body so far as record management programme of the Central as well as State Government is concerned and a number of Resolutions regarding appraisal, weeding and also